The Commandment That Stands Near: Teshuvah, Accessible Kingship, and the Beauty of Measured Giving

Originally written 1 September 2026 (19 Elul 5786). Archive: Elul · Daily Learning.

Tuesday, September 1, 2026 · י"ט באלול ה'תשפ"ו
Elul 19, 5786 · A regular weekday in the month when the King is in the field

The Daily Learning Portions

Secular date: Tuesday, September 1, 2026
Hebrew date (Israel / Jerusalem): 19 Elul 5786
Season: Elul — month of Divine mercy and forgiveness; stocktaking; preparation for the Days of Awe; daily shofar; extra Tehillim; checking of tefillin and mezuzot.

- **Chumash:** Parshat Nitzavim–Vayelech, 3rd weekday portion — *Devarim* 30:7–30:14
- **Tehillim:** Chapters 90–96; Elul addition: 55, 56, 57
- **Tanya:** *Iggeret HaKodesh*, middle of Epistle 15
- **Rambam:** One chapter: *Ishut*, Chapter 5
- **Hayom Yom:** Elul 19 — Alter Rebbe in Vitebsk on *Atem Nitzavim*: chopping wood / draining water
- **Today in Jewish History:** Passing of R. Chaim Benveniste (1673), author of *Kenesset HaGedolah*
- **Laws & Customs:** Elul observances; King in the field; daily shofar; three extra chapters of Tehillim
- **Daily Thought:** "Happy Birthday, Universe" — every moment the world is born anew

I. The Text That Stands Before Us

The third weekday aliyah of Nitzavim–Vayelech is short in verses and inexhaustible in claim. After the Torah has already spoken of exile, of the heart's return, and of the circumcision of the heart that G-d Himself will complete, it turns to the enemy and then, with sudden intimacy, to the commandment that is not far.

> *And the Lord your G-d will place all these curses upon your enemies and upon your adversaries who pursued you. And you will return and listen to the voice of the Lord, and fulfill all His commandments which I command you this day. And the Lord your G-d will make you abundant for good in all the work of your hands… For the Lord will once again rejoice over you for good, as He rejoiced over your forefathers — when you obey the Lord your G-d… and when you return to the Lord your G-d with all your heart and with all your soul. For this commandment which I command you this day is not concealed from you, nor is*

> *it far away. It is not in heaven, that you should say, "Who will go up to heaven for us and fetch it for us…?" Nor is it beyond the sea… Rather, this thing is very close to you; it is in your mouth and in your heart, so that you can fulfill it. (Devarim 30:7–14)*

The movement of the parshah is not from theory to practice. It is from *reversal* to *nearness*. The curses that clung to Israel are transferred. The people return. G-d rejoices again — *yashuv Hashem lasus alecha letov* — as He rejoiced over the fathers. Then the Torah names the condition that makes all of this livable: the mitzvah is not *niflet*, not concealed, not locked in a vault of specialists. It is not in heaven. It is not across the sea. It is *karov eilecha me'od* — very close — in the mouth and in the heart, *la'asoto*, to do it.

On a Tuesday in Elul, with the shofar already sounding for more than two weeks and Rosh Hashanah eleven days away, this is not a literary flourish. It is the architecture of the month.

II. Classical Meforshim: What Is "This Commandment"?

Rashi: Not covered, and if it were in heaven you would still have to go

Rashi on 30:11 reads *lo niflet hi mimcha* as *lo mechussah* — it is not covered from you. He binds the verb to *ki yippalei* in *Devarim* 17 and to *vatered pela'im* in Eichah: hiddenness, concealment in a storehouse. The mitzvah is not stored out of reach.

On 30:12 he cites Eruvin 55a: "It is not in heaven — for if it were in heaven, you would have to go up after it to learn it." The point is severe. Distance is not an excuse. Even a heavenly Torah would still be *your* assignment. The Gemara's larger sugya, and the later use of *lo bashamayim hi* in Bava Metzia 59b (the oven of Achnai), together insist that once Torah has been given, its adjudication belongs to the community that received it — not to a voice that bypasses the process.

Ramban: "This commandment" is teshuvah

Ramban refuses to let *hamitzvah hazot* dissolve into a vague synonym for "the whole Torah." When the Torah means the whole Torah, it says *kol hamitzvah*. Here, he writes, "this commandment" refers to the teshuvah already commanded in the preceding verses: *vehashevota el levavecha* and *veshavta ad Hashem Elokecha*. It is stated in the future/indicative rather than as a raw imperative in order to carry a promise: this *will* happen. And the reason given is pastoral and legal at once. Even if your outcasts are at the edge of the heavens and you are in the hand of the nations, you can still return, "for the thing is not wondrous and far from you, but very close to you to do it at every time and in every place." Mouth and heart mean confession with the mouth and return of the heart, together with acceptance of the Torah for the generations.

This is the Elul reading. Teshuvah is not a pilgrimage to a specialist. It does not wait for a prophet to descend with a new scroll. It is commanded, promised, and placed in organs the person already has.

Sforno: You do not need a prophet from heaven in order to repent

Sforno tightens the same line. *Lo bashamayim hi*: in the matter of teshuvah you will not need the announcement of a prophet. You can keep this commandment even in the Diaspora, where Torah scholars may not stand at the door. The sea and the heaven are the two classic images of unbridgeable expertise. The Torah declines both.

Ibn Ezra: The sea as the uncrossable dark

Ibn Ezra hears *me'ever layam* as the Great Sea whose surface darkens and in which a night traveler is lost. The rhetoric is geographic, but the implication is spiritual: do not construct an ocean between yourself and the work.

Ohr HaChaim and Kli Yakar on the surrounding movement

Ohr HaChaim and Kli Yakar, working the earlier verses of the chapter, attend to the double language of scattering and casting, and to the doubled *veshav*. Return is both the undoing of rebellion (*shevutcha*) and the gathering of the people. Kli Yakar notes that the later circumcision of the heart is the gift of serving from love rather than from fear alone — *simchah* as the inner climate of obedience. The third aliyah sits between the promise of that circumcision and the declaration of nearness. G-d will finish what the heart begins; the heart is nonetheless commanded to begin.

Abarbanel and Malbim: Accessibility as a claim about Torah itself

A broader stream of peshat reads 30:11–14 as a statement about Torah as a whole: it is not esoteric wisdom reserved for an elite who climb or sail. Malbim and others distinguish the intellectual availability of the command from the moral work of doing it. The Torah can be near in the mouth — recited, taught, confessed — and still fail if it never enters the heart as *la'asoto*. Nearness is not automatic. It is the condition that makes refusal inexcusable.

The two readings — teshuvah specifically, and Torah as a whole — are not enemies. Teshuvah *is* the Torah's way of remaining near after rupture. A law that cannot be returned to is a law that has already gone to heaven.

III. Chassidus and the Rebbe: Standing, Chopping, Draining, and the King in the Field

Hayom Yom — Elul 19

Hayom Yom for this date records a teaching of the Alter Rebbe from the Vitebsk years on the opening of Nitzavim:

> *When the Alter Rebbe was still in Vitebsk he once expounded on the verse "You stand…" Taking eitz (wood) as an idiom of eitza (counsel), he interpreted "choppers of wood" to mean that one must chop out "the many thoughts (counsels) in the heart of man." "Those who draw water," he interpreted — one must drain out the water that "makes all enjoyments grow."*

The verse is *Devarim* 29:9–10: *Atem nitzavim hayom kulchem… mechoitev eitzecha ad sho'ev meimecha*. The entire people stands — heads, tribes, elders, officers, every man of Israel, children, women, convert, woodchopper, water-drawer. The Alter Rebbe does not flatten the social range. He interiorizes the last two labors.

Wood is *eitza*: the swarm of inner counsels, the committee that never adjourns. Elul work begins by chopping. Not every thought deserves a seat at the table. Water, as Tanya chapter 1 already taught, is the element from which appetite grows; water makes all enjoyments sprout. Drawing water, in this reading, is not provision but drainage. One must empty the cistern that keeps feeding the old year.

The two labors belong together. An unchopped mind will always find a new justification. An undrained heart will always find a new thirst. Standing *hayom* — today, in the covenant, before Hashem — requires both.

The King in the field

The Alter Rebbe's parable for Elul is the companion image. In the palace, protocol screens the king. In the field, "everyone who so desires is permitted to meet him, and he receives them all with a cheerful countenance and shows a smiling face to them all." The King is not less king. He is more available. Nearness does not cancel majesty; it relocates it.

Lo bashamayim hi and "the King is in the field" are the same grammar in two dialects. Heaven is the palace of excuse. The field is the mouth and the heart. The month does not ask Israel to invent a ladder. It asks Israel to walk across the stubble and speak.

Tanya — Iggeret HaKodesh, Epistle 15 (middle)

Today's Tanya portion maps the seven middot as they appear in the soul. Chesed wants to give without limit. Gevurah wants to contract or withhold. Rachamim — compassion — is the mediating attribute: it will not spray benevolence on one who lacks nothing, and it will not abandon the one who is pitiable even if he is unworthy. Because it blends, it is called *tiferet*, beauty: not a garment of one dye, but many colors mixed until harmony appears.

Then the Alter Rebbe turns to the moment of actual giving. Once chesed, gevurah, or tiferet is aroused to bestow, one must deliberate *how* to give so that the recipient can receive. The mashal is a father teaching a son. If he pours out the idea in the exact form it has in his own mind, the son cannot absorb it.

This is Elul chinuch hiding inside a kabbalistic letter. Teshuvah that is "very close" is not a dump of unprocessed heaven onto a child, a student, or a kehillah. Nearness includes *tzimtzum* for the sake of reception. Unlimited chesed that ignores the vessel is not kindness. It is flooding. Tiferet is the Elul midah: mercy that has learned measure, beauty that has consented to more than one color.

The Rebbe's later reading of these same pesukim (see the Daily Wisdom adaptation of *Sefer HaSichot* 5752) adds a further claim. Even the parts of Torah that *are* remote, high, or "beyond" are not remote *from you*, because the Jewish soul is rooted in what precedes Torah. Accessibility is not a lowering of Torah. It is a statement about who the learner is.

Tehillim 90–96 and the Elul three

The daily chapters walk a single ridge.

- **90** — Moshe's prayer: *Hashem, ma'on atah hayita lanu bedor vador*. Time is dust; teach us to number our days. Elul is that numbering.
- **91** — Dwelling in the shadow of the Shaddai. The field has a shelter.
- **92** — Mizmor shir leYom haShabbat. Already the week leans toward rest; even a Tuesday in Elul hears Shabbat as the horizon of settled praise.
- **93** — *Hashem malach gei'ut lavesh*. Kingship clothed in grandeur. The King in the field has not removed the robe.
- **94** — G-d of retributions, shine forth. Justice is not postponed until the palace. The transfer of curses onto the pursuer (30:7) rhymes with this psalm.
- **95–96** — Come, let us sing; sing a *new* song. The Daily Thought on the calendar is not ornamental: every year the shofar midwifes a universe; every morning is a smaller birth; every moment is projected from nothing. A new song is not a mood. It is metaphysics.

The extra Elul chapters — 55, 56, 57 — are the underside of that confidence: the heart in tumult, the mute dove far away, David in the cave. Elul does not skip the cave. It recites the cave on the way to the field.

IV. Today in Jewish History: R. Chaim Benveniste and a Code That Stands Near

On this date in 1673, R. Chaim Benveniste of Izmir passed away. His *Kenesset HaGedolah* gathers halachic material in the order of the Shulchan Aruch. The title itself — the Great Assembly — remembers the original Kenesset HaGedolah that restored Torah to public standing after the first exile.

A code is an argument about nearness. It says: the law will not remain in the heaven of unpublished chiddush or the sea of unindexed teshuvot. It will stand where a working posek and a searching Jew can find it. Benveniste's project is not identical to *lo bashamayim hi*, but it lives in the same house. Transmission that cannot be located is transmission that has already begun to leave the mouth and the heart.

The Benveniste family also touches the longer story of Jewish political endurance in the Ottoman world and in the circle of Dona Gracia. Law, commerce, and communal responsibility were not separate hobbies. A people that keeps a code in order can stand *kulchem* — all of you — when the next decree arrives.

V. Avodah for 19 Elul: Mind, Heart, Action, Speech, Time, Identity, Community

Mind. Chop wood. Name the three *eitzot* that have been running the committee this year — the justifications that always arrive before the deed. Write them. Then treat them as lumber, not as oracles. *Lo niflet* does not mean every thought is Torah. It means Torah is available to judge the thoughts.

Heart. Drain water. Tanya's element of water grows enjoyments. Elul drainage is not hatred of pleasure; it is refusal to let appetite be the aquifer of identity. One concrete fast from a tolerated indulgence, kept through the week, teaches the heart that it has a tap.

Action. Do the near thing. The parshah's punchline is *la'asoto*. Check tefillin and mezuzot if it has not been done this Elul. Give tzedakah before the day's heat. Return one object, one apology, one unpaid remainder. Teshuvah that remains a meditation has gone back to heaven.

Speech. Mouth first. Ramban reads *beficha* as confession. The mouth is also the place of the new song (Tehillim 96) and of teaching a child in language the child can receive (Tanya, Epistle 15). Speak one sentence of vidui that is specific. Speak one sentence of encouragement that is measured to the listener's vessel.

Time. Number the days. Eleven days to Rosh Hashanah from this date's evening count, depending on the hour. Tehillim 90 is the siddur of that arithmetic. Do not wait for the palace calendar. The field is dated *hayom*.

Identity. Stand. *Nitzavim* is not slouching toward covenant. The woodchopper and the water-drawer stand in the same row as the heads of tribes. Elul identity is not a promotion. It is a refusal to outsource standing to someone holier.

Community. Transfer the curse off the wrong back. Verse 30:7 is national: the chase is named, the pursuer is addressed. Ahavat Yisrael, which the Elul customs explicitly increase, is not sentiment. It is the decision not to become one another's adversary while the King is walking the same rows.

VI. Chinuch and the Shabbat Table

A father of young children does not need to lecture *lo bashamayim hi*. He needs to make Torah feel near.

- Put the verse on the table in English and Hebrew: "It is very close to you — in your mouth and in your heart — to do it." Ask: what is one mitzvah that is close enough for you to do before bedtime?
- Tell the King-in-the-field mashal as a story, not as a slogan. The king leaves the palace. Anyone may approach. What would you say if you met him between the tomato plants?
- Use the Tanya mashal without naming sefirot: Abba knows a hard idea. If he says it the way it sits in his own head, the child drowns. So he makes it smaller without making it false. That is honor, not dilution.
- Hayom Yom for children: too many thoughts are like too many sticks in the doorway. We chop so we can walk through. Too much "I want" is like a tub that never empties. We drain a little so there is room for someone else.
- Tehillim 91 as a night pasuk. Shelter is not a theory.
- History in one line: a rabbi in Izmir spent his life putting the law in order so Jews could find it. That is a kind of kindness.

If the family will sit Friday night with Nitzavim–Vayelech still in the air, let the children hear that teshuvah is not a trip to heaven. It is a sentence and a deed in this room.

VII. Covenantal-Republican Resonance — Only Where the Text Already Speaks

The day's pesukim already argue against two forms of domination.

First, domination by distance. A law that lives only in heaven or across the sea is a law administered by those who claim the ladder or the ship. *Lo bashamayim hi* is a constraint on priestly and prophetic monopoly after Sinai. The later rabbinic use of the phrase in the oven of Achnai is the juridical sequel: even a heavenly voice does not cancel the process given to the sages and, through them, to Israel. Limited authority under a higher law is not a modern import. It is the Torah's own refusal to let power hide in inaccessibility.

Second, domination by inner chaos. The Alter Rebbe's wood and water are the soul's factionalism. A republic of one person still requires that not every counsel vote. Civic virtue begins where the committee is thinned.

Third, kingship that can be approached. The Elul mashal is not anarchy. The King remains King. But the field is a different constitutional moment than the throne room. Availability without the surrender of law is the opposite of both tyranny and of a vanished sovereign. Non-domination, in Pettit's sense, is not the absence of rule; it is the absence of arbitrary rule. A King who receives every petitioner with a cheerful countenance, yet who will still sound the shofar of judgment, is an image of rule that can be faced.

Fourth, particularist national responsibility. Verse 30:7 does not universalize the chase into a fog. There were pursuers. There will be a transfer. A covenanted people may not outsource its enemies to abstraction, nor may it become the pursuer of its own. Justice here is named, limited, and placed in G-d's hand — which is precisely why human revenge is not licensed as policy.

None of this requires the Torah to become a footnote to civic theory. It requires civic theory to notice that Israel's founding documents already fear an unreachable law and an unapproachable king.

VIII. Rambam, Ishut Chapter 5 — A Brief Note

The one-chapter Rambam cycle today treats what can validly effect kiddushin: objects of forbidden benefit, stolen property, hekdesh, terumah, loans, and the need for a *perutah* of value and for the woman's awareness. The surface subject is marriage. The underlying grammar is the same as the parshah's: a covenant is not made with what may not be used, nor with what the other party cannot receive. Consecration that ignores the vessel is not kiddushin. Tanya's father-and-son mashal and Rambam's insistence on a present, permitted, recognized act of acquisition rhyme without being forced.

IX. Closing: The New Moment

The calendar's Daily Thought says that with the shofar the universe is reborn, and that the same is true, in miniature, of every month, every morning, and every instant. "Which is why there is always hope. Because at every moment, life is born anew. And we are the masters of how this new moment will be born."

19 Elul does not ask for mastery in the imperial sense. It asks for the mouth and the heart to show up while the moment is still wet. The commandment is close. The King is in the field. The wood can be chopped. The water can be drained. The child can be taught in a language that does not drown him. The code can be found. The song can be new.

Karov eilecha me'od. Very close. Not later. Not higher. Here.

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Prepared in deep partnership and cooperation with Grok and xAI